

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KIRPICHEV (KIRPICHENKO) AND OTHERS v. RUSSIA

(Applications nos. 44850/18 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

9 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Kirpichev (Kirpichenko) and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 October 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some of them also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. *LOCUS STANDI* OF Mr BORODIN'S WIDOW (APPLICATION No. 35843/21)

7. The Court observes that Mr V. Borodin (applicant in application no. 35843/21) died while the case was pending before the Court. His wife, Ms Borodina, expressed her wish to continue the proceedings in his stead (see appended table).

8. The Court reiterates that where an applicant dies during the examination of a case, his or her heirs or close relatives may in principle pursue the application on his or her behalf (see *Ječius v. Lithuania*, no. 34578/97, § 41, ECHR 2000-IX, and concerning, more specifically, complaints under Article 11 of the Convention, *Savenko and Others v. Russia*, no. 13918/06, § 52, 14 September 2021, and references cited therein). In the present case, the applicant's widow submitted documents confirming that she was the applicant's heir. In these circumstances, the Court considers that Ms Borodina has a legitimate interest in pursuing the application in place of her late husband (*ibidem*, § 53).

IV. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

9. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

10. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

11. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

12. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

13. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

V. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

14. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

15. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Grigoryev and Igamberdiyeva v. Russia* [Committee], no. 10970/12, 12 February 2019, about inadequate redress for unlawful deprivation of liberty in the context of administrative-offence prosecution for participation in public events; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Gankin and Others v. Russia*, nos. 2430/06 and 3 others, §§ 25-44, 31 May 2016, as to the applicant's absence at the appeal hearings; *Glukhin v. Russia,* no. 11519/20, §§ 64-91, 4 July 2023, concerning unjustified processing of the applicant's personal biometric data by using highly intrusive facial recognition technology in administrative offence proceedings in order to identify, locate and arrest him; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 99-145, 5 April 2022, concerning prosecution for administrative offences for calling on voters not to vote for a specific political party or to abstain from voting in elections; *mutatis mutandis*, *Sürek v. Turkey (no. 1)* [GC], no. 26682/95, § 58, ECHR 1999-IV, and *Mariya Alekhina and Others v. Russia*, no. 38004/12, §§ 197-201, 17 July 2018, concerning administrative conviction for discreditation of the Russian Army in the context of anti-war protest actions; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

VI. REMAINING COMPLAINTS

16. The Court has further examined the complaint under Article 6 raised by the applicant in application no. 35843/21, and considers that, in the light of all the material in its possession, this complaint does not disclose any appearance of a violation of that provision. It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

17. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 12 and 15 above, the Court considers that there is no need to deal separately with these remaining complaints.

VII. APPLICATION OF ARTICLE 41 OF THE CONVENTION

18. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Holds* that Ms Borodina, the widow of the applicant, Mr Borodin, in application no. 35843/21, has a legitimate interest in pursuing the application in place of her late husband;

4. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *dismisses* the complaints raised under Article 6 of the Convention by the applicant in application no. 35843/21 as inadmissible, and *finds* that there is no need to examine separately the remaining complaints raised by the applicants under Article 6 of the Convention;

5. *Holds* that there has been a breach of Article 11 of the Convention;

6. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

7. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) hat from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	44850/18 11/09/2018	**Aleksandr Mikhaylovich KIRPICHEV (KIRPICHENKO)** 1984		Rally against falsification of presidential elections St Petersburg 28/01/2018 Rally against the war in Ukraine St Petersburg 03/03/2022	article 19.3 § 1 of CAO, article 20.2 § 5 of CAO article 20.2 § 2 of CAO	administrative detention of 10 days (art. 19.3 § 1), fine of RUB 15,000 (art. 20.2 § 5) fine of RUB 10,000	St Petersburg City Court, 16/03/2018 and 19/04/2018 St Petersburg City Court 05/04/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 7.00 p.m. on 13/03/2018 to 14/03/2028, - from 7.30 p.m. on 03/03/2022 to 04/03/2022. Both times the applicant was detained until the hearings in his administrative-offence cases; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 16/03/2018, 19/04/2018, 14/05/2018 and 05/04/2022; Art. 10 (1) - various restrictions on the right to freedom of expression - administrative conviction under art. 5.12 § 1 of the CAO (production or dissemination of printed, audio-visual, or other campaigning material in breach of the electoral legislation) for distribution of leaflets against the elections on 10/02/2018; fine of RUB 1,000; final decision: 14/05/2018, St Petersburg City Court; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 14/03/2018 was executed immediately, on account of the lack of	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
								suspensive effect of an appeal under the CAO (the appeal was considered on 16/03/2018); Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participation in the same public event: under Art. 19.3 § 1 (administrative detention), and under Art. 20.2 § 5 (fine) of the CAO	
2.	52954/18 25/10/2018	**Aleksey Sergeyevich BELOZEROV** 1988	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally in support of Mr A Navalnyy St Petersburg 05/05/2018	article 19.3 § 1 of CAO, article 20.2 § 8 of CAO	administrative detention of 15 days, fine of RUB 170,000	St Petersburg City Court, 16/05/2018 and 18/05/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 12/06/2017 to 14/06/2017, hearing in the applicant's administrative-offence case (complaint raised in the compensation proceedings following the quashing of the applicant's administrative conviction under art. 19.3 § 1 of the CAO for his participation in a rally in 2017; his action was partly granted, and he was awarded about 580 EUR for pre-trial detention and post-conviction detention; final decision: Single Judge of the Supreme Court, 08/12/2020), 2) from 4.30 p.m. on 05/05/2018 (the applicant spent more than 4 hours in the police van) to 06/05/2018, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings - final decisions: St Petersburg City Court, 16/05/2018 and 18/05/2018; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice - under art. 19.3 § 1	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
								(administrative detention) and under art. 20.2 § 8 (fine) of the CAO for his participation in the same public event of 05/05/2018	
3.	56135/18 25/10/2018	**Andrey Andreyevich GRAF** 1991		Rally against Mr Putin's re-election as President St Petersburg 05/05/2018 Anti-government rally St Petersburg 07/10/2018	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 administrative detention of 15 days	St Petersburg City Court 26/07/2018 St Petersburg City Court 11/10/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.15 p.m. on 05/05/2018 to 9.15 a.m. on 06/05/2018. Following the discontinuation of the proceedings under art. 19.3 § 1 of the CAO, the applicant brought a compensation action and was granted RUB 3,000 (38 EUR). Final decision: 24/12/2020, Supreme Court of Russia; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in respect of sets of administrative-offence proceedings which ended with the final decisions of St Petersburg City Court on 24/07/2018 and of 11/10/2018	5,000
4.	25403/19 23/04/2019	**Aleksey Nikolayevich NIKITIN** 1969		Rally against pension reform Krasnodar 09/09/2018	article 19.3 § 1 of CAO	administrative detention of 5 days	Krasnodar Regional Court, decision of 25/09/2018 adopted in the applicant's absence and received on 26/10/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. on 26/12/2018 to at least 2.00 p.m. on 27/12/2018, hearing in the applicant's administrative offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Krasnodar Regional Court, 25/09/2018, 06/02/2019 and 06/03/2019;	5,000

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				"Stroll"/rally against raising prices for public transport (14 participants) Krasnodar 24/12/2018 Rally in support of Mr A Navalnyy Krasnodar 31/01/2021	article 20.2 § 2 of CAO article 20.2 § 8 of CAO	administrative detention of 5 days fine of RUB 20,000	Krasnodar Regional Court 06/02/2019 Krasnodar Regional Court 09/12/2021	Art. 6 (1) – applicant's absence from administrative-offence proceedings - The applicant came to the appeal hearings scheduled on 25/09/2018. He waited for 6 hours in front of the judge's office, in vain, he was never called. On 26/09/2018 he complained to the president of the court. By a letter of 26/10/2018, the Krasnodar Regional Court answered that the appeal decision was adopted on 25/09/2018. There is no assessment in the decision of the issue of the applicant's absence; Art. 10 (1) - disproportionate measures against solo demonstrators - Krasnodar, 20/12/2018, solo demonstration against rising prices for public transport; administrative conviction under art. 20.2 § 5 of CAO to a fine of RUB 10,000; final decision: Krasnodar Regional Court, 06/03/2019; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 27/12/2018 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
5.	28534/21 02/06/2021	**Vadim Vilyevich KHAYRULLIN** 1972	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Kaliningrad 31/01/2021	article 20.2 § 2 of CAO	administrative detention of 5 days	Kaliningrad Region Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": from 1.30 p.m. on 31/01/2021 to 11.00 a.m. on 02/02/2021, hearing on the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings - final decisions: Kaliningrad Region Court, 11/02/2021 and 23/03/2021;	5,000

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								Art. 10 (1) - disproportionate measures against solo demonstrators - Solo picketing in support to Belarus on 29/08/2020 in Kaliningrad; the applicant was convicted under art. 20.2 § 5 of the CAO and sentenced to an administrative fine of RUB 20,000; final decision: Kaliningrad Regional Court, 23/03/2021	
6.	28773/21 11/05/2021	**Dmitriy Viktorovich TOLMACHEV** 1970	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Political rally Irkutsk 31/01/2021 Rally in support to Mr A. Navalnyy Irkutsk 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 2 of CAO	fine of RUB 15,000 administrative detention of 9 days	Irkutsk Regional Court 23/09/2021 Irkutsk Regional Court 29/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings - final decisions: Irkutsk Regional Court, 29/04/2021 and 23/09/2021	5,000
7.	29826/21 21/05/2021	**Gleb Maksimovich SHIN** 1998	Sokolov Yevgeniy Vladislavovich Belgorod	Rally in support of Mr A Navalnyy Belgorod 31/01/2021	article 20.2 § 5 of CAO	community works of 20 hours	Belgorod Regional Court 15/03/2021		3,500

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8.	30438/21 15/05/2021	**Boris Yulyevich KAGARLITSKIY** 1958	Gilmanov Mansur Idrisovich Podolsk	Rally against the constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/11/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.30 p.m. on 15/07/2020 to 2.30 a.m. on 16/07/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 16/11/2020	5,000
9.	31692/21 07/06/2021	**Ramazan Ramazanovich RADZHABOV** 1998	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.51 p.m. on 23/01/2021 to 1.00 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 16/03/2021	5,000
10.	32169/21 11/06/2021	**Andrey Ramilevich BOYKO** 1990	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.08 a.m. to 4.35 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court, 28/04/2021	5,000

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11.	32719/21 14/06/2021	**Konstantin Olegovich DYDZINSKIY** 1975		Rally (collection of signatures) against constitutional amendments Moscow 15/07/2020	article 20.2 § 8 of CAO	fine of RUB 200,000	Moscow City Court 14/12/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.00 p.m. on 15/07/2020 to 4.30 a.m. on 16/07/2020, while the said record was drawn up only on 30/07/2020;	6,000
12.	32752/21 01/06/2021	**Kamil Ramilevich GALEYEV** 1992	Kurakina Polina Sergeyevna Moscow	Rally in support of Mr A Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 05/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 05/02/2021; Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the identification of the applicant as a participant of a rally and his subsequent conviction	9,800
13.	33306/21 13/06/2021	**Anton Ivanovich SORVACHEV** 1982 **Petr Viktorovich BORKOV** 1986 **Petr Viktorovich SHVAREV** 1993	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally in support of Mr A Navalnyy Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fines of RUB 10,000, 17,000 and 10,000 respectively of the three applicants	Supreme Court Komi Republic, 31/03/2021, 07/04/2021 and 07/04/2021, respectively	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings - final decisions: Supreme Court of the Komi Republic, 31/03/2021, 07/04/2021 and 07/04/2021 (in respect of each of three applicants)	4,000

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14.	33456/21 01/06/2021	**Dmitriy Nikolayevich SKURIKHIN** 1974		Commemoration of Boris Nemtsov St Petersburg 29/02/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 01/12/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", in the morning on 23/01/2023 (in order to prevent the applicant's participation in the rally in support to Mr A. Navalnyy), then from 7.00 p.m. on 23/01/2021 to 24/01/2021, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 02/02/2021 and 05/07/2022; Art. 10 (1) - conviction for making calls to participate in public events - conviction for having made calls on 17/01/2021 to participate in an unauthorised public event in support of Mr A. Navalnyy scheduled for 23/01/2021, art. 20.2 § 8 of the CAO, administrative detention of 20 days. Final decision: St Petersburg City Court, 02/02/2021; Art. 10 (1) - disproportionate measures against solo demonstrators - On 06/03/2022 the applicant held a solo picket in St Petersburg, against the war in Ukraine. He was administratively convicted, under art. 20.3.3 § 1 of the CAO (discreditation of the Russian army) and fined to RUB 45,000. Final decision: St Petersburg City Court, 05/07/2022	5,000

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15.	33806/21 03/06/2021	**Aleksandr Vladimirovich BOGOMAZ** 1976	Sabinin Andrey Vasilyevich Stavropol	Rally in support of Mr A Navalnyy Smolensk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 14,000	Smolensk Regional Court 17/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, from 2.00 p.m. to 5.00 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Smolensk Regional Court, 17/03/2021	5,000
16.	34091/21 06/06/2021	**Albina Romanovna YANOVA** 1993	Zubarev Dmitriy Vladimirovich Vladivostok	Rally in support of Mr A Navalnyy Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.56 p.m. to 10.20 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Primorye Regional Court, 20/04/2021	5,000
17.	35049/21 25/06/2021	**Pavel Yuryevich TEMNIKOV** 1986	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11 a.m. to 4.30 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 21/05/2021	5,000
18.	35139/21 25/06/2021	**Dmitriy Andreyevich SKIRTA** 1997	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow	article 20.2 § 6.1 of CAO	administrative detention of 3 days	Moscow City Court 08/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. to 09.00 p.m. on 31/01/2021;	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
				31/01/2021				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 08/04/2021	
19.	35140/21 25/06/2021	**Kirill Aleksandrovich KARPOV** 1992	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.00 and 11.10 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 19/05/2021	5,000
20.	35144/21 25/06/2021	**Georgiy Andreyevich SAPOZHNIKOV** 1988	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.10 p.m. on 23/01/2021 to 7.00 p.m. on 25/01/2021, hearing in the applicant's administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 10/03/2021	5,000
21.	35147/21 25/06/2021	**Anna Yuryevna KUTSENKO** 2001	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.00 a.m. to 4.10 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 20/04/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
22.	35165/21 25/06/2021	**Dmitriy Vladimirovich LUKIN** 1996	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.30 a.m. to 5.10 p.m. on 02/02/2021; the applicant spent 2h30 in the police van; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 20/04/2021	5,000
23.	35166/21 25/06/2021	**Oleg Anatolyevich MAKAYEV** 1989	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.30 p.m. to 8.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 26/04/2021	5,000
24.	35188/21 18/06/2021	**Sergey Aleksandrovich ANDREYEV** 1975	Memorial Human Rights Centre Moscow	Rally in support of Mr A Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 18/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.00 p.m. 23/01/2021 to 7.00 p.m. on 25/01/2021, hearing in the applicant's administrative-offence case' Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 18/02/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
25.	35688/21 02/07/2021	**Aleksey Aleksandrovich GRUZDEV** 1972	Kurochko Yelena Viktorovna Vologda	Rally in support of Mr A Navalnyy Vologda 31/01/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	Vologda Regional Court 11/03/2021		3,500
26.	35818/21 27/06/2021	**Sergey Mikhaylovich SKVORTSOV** 1990	Bochilo Anna Yevgenyevna Barnaul	Rally in support of Mr A Navalnyy Lipetsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Lipetsk Regional Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 23/01/2021 to 2.00 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Lipetsk Regional Court, 18/03/2021	5,000
27.	35843/21 31/05/2021	**Vadim Dmitriyevich BORODIN** 1960 In March 2022 the applicant died. His widow Ms T. Borodina expressed the wish to pursue the application on his behalf		Rally in support of Mr A Navalnyy Magnitogorsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 31/03/2021		3,500

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28.	36391/21 07/07/2021	**Yana Igorevna TEPLITSKAYA** 1991	Pershakova Yelena Yuryevna Moscow	Rally in support of the persons accused in the "Set" criminal case St Petersburg 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 02/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.45 p.m. to 10.20 p.m. on 22/06/2020, no record of the applicant's detention was drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: St Petersburg City Court, 02/02/2021	5,000

[1] Plus any tax that may be chargeable to the applicants.